



St. Vrain Valley
Community Watchdogs
neighbors united for clean air

P O Box 82/Hygiene/CO 80533-0082
online at www.stvrainwatchdogs.org

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OCT 30 2002

Division of Minerals and Geology

Are the risks really worth it?

Lyons Board of Trustees
Lyons, Colorado 80540

October 21, 2002

Dear Trustees,

Background:

M-1977-208 Lyons Quarry

For the last five years, the Watchdogs have been working in concert with local and State agencies in an effort to seek a solution to fugitive dust problems at Cemex-Lyons (formerly Southdown). A priority of our efforts has been for Cemex-Lyons to adopt and maintain effective housekeeping practices. This is crucial to prevent episodes of fugitive Portland cement dust from blowing into the surrounding communities. In the years previous to our campaign, cement dust was saturating the St. Vrain Valley. Residents here had not been able to open their windows for nine years. Regardless, the white dust was still everywhere inside their homes.

Although improvements have been made, the company still has episodic cement dust storms due to failures in housekeeping. Enclosed are copies of two recent complaint investigation inspection reports performed by the Boulder County Health Department (09/30/02) and the Colorado Air Pollution Control Division (10/01/02). Cemex-Lyons' dust control plan is still far from adequate. The company's dust continues to pose a threat to the safety and health of people in the community.

Trust:

Still unable to contain its toxic dust, Cemex-Lyons is now launching a new project to increase corporate profits by burning 700,000 to 1,000,000 waste tires as fuel in the cement kiln. There are many resident in Lyons, Hygiene, and Longmont who are opposed to this potentially hazardous practice of using tires as fuel. Cemex-Lyons, however, is scheduling a test burn in November.

The EPA's position is that burning tires in a cement kiln may be an acceptable practice provided that the kiln is appropriately designed, operated, and maintained. However, the observations stated in the enclosed complaint investigation reports have raised a serious trust issue within the community that has lead us to believe that Cemex-Lyons may not be able to consistently meet the high EPA standards that tire burning requires in order to avoid toxic air emissions accidents. The Watchdogs are wary of corporate rhetoric and suspicious of what might happen after the test burn when no regulators are present.

Problems with regulating toxic substances that can't be seen:

Previous to citizen involvement in the Portland cement dust issue, the regulatory agencies were unaware of the dire conditions in the St. Vrain Valley because the agencies are located in Boulder and Denver. Since the residents here have been able to see these dust clouds, we have been able to report these incidents to the agencies. In a tire burning situation; however, any malfunctions resulting in chemically unknown fugitive emissions may presumably go unseen, and air pollution from these malfunctions could disperse for many miles.

The potential health hazards of tire burning:

Tires are not benign substances to burn. We are researching what toxins could be released into the atmosphere when there is an operating malfunction or even a worse case scenario. Will the EPA and other agencies know if malfunctions in combustion occur? Will Cemex-Lyons be able to consistently meet the stringent standards of performance required by the EPA?

According to John Ray, President of the Montana Environmental Information Center, "When tires are burned in a cement kiln new and deadly compounds are produced. The most deadly are dioxins." The EPA says of dioxins: "Exposure to dioxins, even at minute levels, poses cancer risks and health concerns including possible damage to the immune and reproductive systems." **Are the risks really worth it? Is it worth giving this corporation carte blanche to launch burning tires strictly for its own personal profit and risk endangering our communities and residents?**

Economic and environmental concerns:

Residents have expressed apprehensions in regard to the economic and environmental impact that tire burning could have. Depressed real estate values, increased truck traffic, contaminated agricultural products, exposure to toxins through the food chain, the contamination of the St. Vrain River, and the potential impact to fish, game, and bird populations are issues of concern.

Bottom line:

Mr. Oakley, editor of "The Old Lyons Recorder," aptly focused on the essence of this controversy in his editorial opinion.

The idea that we should err on the side of caution where human health is concerned... seems to be the best guiding principle at work in this controversy.

The Watchdogs respectfully request that the Lyons Board of Trustees review the enclosed documents, consider the serious consequences that tire burning may pose to the neighboring communities, and lend your advocacy that this project should be opposed.

We want to thank the Lyons Board of Trustees for its consideration of the issues expressed in this letter.

Sincerely,



Richard Cargill
Executive Director

St. Vrain Valley Community Watchdogs

Additional information:

Websites: stvrainwatchdogs.org
globalpeacefoundation.com (environmental justice project)
notoxicburning.org
svtc.org
meic.org

Write to: Center for Health, Environment & Justice, PO Box 6806
Falls Church, Virginia 22040-6806

A special thanks to Trustee LaVern Johnson for providing research documents on the potential hazards of burning tires in cement kilns. These documents have been most helpful to many people in the community

Enclosures:

Inspection - Boulder County Health Department
Inspection - CDPHE, Air Pollution Control Division
Letter - Boulder County Board of Health
Letter - Division of Minerals and Geology
Editorial Opinion
News story

Cc: Boulder County Commissioners
Ms. Beth Versaw, President, Boulder County Board of Health
✓ Ms. Margie Perkins, Director, Air Pollution Control Division
Mr. Carl Mount, Senior Environmental Protection Specialist, DMG
Mr. Richard Long, Director, Air and Radiation Program, USEPA, Region 8

Mr. Kerrigan Clough, EPA, Region 8
Mr. Mike Owens, EPA, Region 8
Ms. Susan de Castro McCann, editor, "Redstone Review"
Mr. Mike Oatley, editor, "The Old Lyons Recorder"
Mr. Gilberto Perez, Cemex, President of U.S. Operations
EPA - Washington, D.C., Docket RCRA - 1999-0011



Health Department

Boulder Office • 3450 Broadway • Boulder, Colorado 80304 • 303-441-1100
Longmont Office • 529 Coffman, Suite 200 • Longmont, Colorado 80501 • 303-678-6166
Tri-Cities Office • 1345 Plaza Ct. N., Suite 3A • Lafayette, Colorado 80026 • 303-666-0515

October 1, 2002

Steve Mossberg
Facility Compliance Manager
Cemex, Inc.
P.O. Box 529, Lyons, CO 80540

Re: Complaint Investigation for Fugitive Dust

Dear Mr. Mossberg,

This letter is in response to a complaint investigation conducted at the Cemex Lyons Plant on September 30, 2002 by myself and Pam Milmoie, Air & Waste Coordinator for Boulder County Health. At the time of the inspection, skies were clear and winds were approximately 20-30 mph. A number of areas observed could pose fugitive dust problems. The following sources of fugitive dust were noted during the inspection:

1. The A-frame storage building has excess dust on the roof and piled-up clinker dust around it that should be covered or removed.
2. The Clinker Pit had fugitive dust emissions in excess of 20% due to improper handling by the loader operator. The Clinker Pit should be unloaded on a set schedule rather than using the presence of dust as an indicator for removal.
3. The haul road behind the A-Frame was particularly dusty and should be watered frequently or treated with dust suppressant.
4. Piles of dust were noted under the conveyor belt at the south end of the plant, just before reaching the stacker. This source of potential fugitive emissions has been identified in previous inspections and should be removed daily.
5. Material stockpiles could be a potential source of fugitive emissions during high winds. It was suggested that the plant find a way to water the top of the piles, possibly running the conveyor belt periodically to mist the piles with the automatic mister.

The Boulder County Health Department is requesting a written response by October 8, 2002, demonstrating how and when these issues will be corrected. A follow-up visit will be made to insure the above items are corrected. Feel free to call me to with any questions or concern at 303-441-1147.

Sincerely,


Gabi Hoefler

Boulder County Health Department

CC: Bob Jorgenson, CDPHE, Air Pollution Control Division
Shannon McMillan, CDPHE, Air Pollution Control Division
Richard Cargill

Bill Owens, Governor
Douglas H. Benevento, Acting Executive Director

4300 Cherry Creek Dr. S.
Denver, Colorado 80246-1530
Phone (303) 692-2000
TDD Line (303) 691-7700
Located in Glendale, Colorado

Laboratory and Radiation Services Division
8100 Lowry Blvd.
Denver, Colorado 80230-6928
(303) 692-3090



**Colorado Department
of Public Health
and Environment**

<http://www.cdphe.state.co.us>

CERTIFIED MAIL 5006 1440/0006 9857-3759

Mr. Steve Mossberg
Compliance Manager, U.S. Operations
Cemex
5134 Ute Highway
P.O. Box 529
Lyons, Colorado 80540

This letter is in response to a complaint investigation conducted at Cemex's Lyons Plant on October 1, 2002. At the time of the inspection, skies were clear and winds were approximately 0-5 mph. Though no fugitive dust was observed to be blowing off-site during the inspection, there are some areas that the Division sees as potential sources of fugitive dust that may be impacting Cemex's neighbors.

- The CKD pit (Lyons Quarry) uses both a sprinkler system on the perimeter and water trucks on the interior for control of fugitive dust. The sprinklers operate throughout each day and the water trucks apply water and/or calcium chloride dust suppressant as needed throughout each day. It is the Division's understanding that the sprinkler system froze during the Spring 2002 and was inoperable for an extended period of time due to a delay in receiving the necessary parts. The Division recommends that Cemex keep spare parts for the sprinkler system on site to minimize downtime during maintenance activities.
- Piles of dust were noted under conveyor belts, kiln, dryer, etc., during the inspection. These areas have a significant potential fugitive dust impact during windy conditions, which is a frequent occurrence in the area. According to Cemex, these areas are currently cleaned up once per week. The Division recommends a more frequent schedule for housekeeping in these areas to minimize the potential for fugitive emissions.

Another area of concern to the Division is the fugitive dust generated during blasting activities at the Dowe Flats Quarry. Colorado Regulation No. 1, Section III.D.1.c., describes "Emission Limitation Guidelines for the Submission of Control Plans". This regulation states that if the Division determines that a source of activity that is subject to this section is operating with visible emissions that are being transported off the property on which the source is located and such source is subject to the no off property transport emission limitation guideline, it shall require the owner or operator of that source or activity to submit a written plan to the Division for the control of fugitive particulate emissions. Based on complaints received from the community, as well as observations made during blasting activities, the Division has determined that visible emissions are being transported off the property on which the

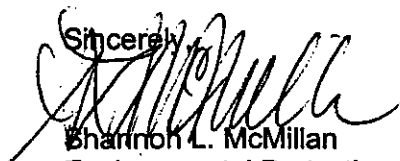
source is located. Based on this information, the Division is requesting that Cemex develop a fugitive dust control plan for blasting activities at the Dowe Flats Quarry.

Control measures and operating procedures to be employed may include, but are not limited to, the removal of overburden prior to blasting, watering down the blast area both prior to and as soon as practicable after blasting, or other equivalent methods or techniques approved by the Division (Regulation No. 1, Section III.D.2.i.). The Division recommends that the fugitive dust control plan include the use of a wind direction and wind speed monitoring device. Through the use of this device, blasting would not occur under either of the following circumstances: wind direction is from 180° to 0° or wind speed greater than 30 mph.

Please provide a response to the concerns regarding the CKD pit, housekeeping activities, and the fugitive dust control plan for blasting in the Dowe Flats Quarry, to my attention at the Division, ***within 60 days of receipt of this letter.***

If you have any questions, or require any further information, please contact me at (303) 692-3259.

Sincerely,



Shannon L. McMillan
Environmental Protection Specialist
Air Pollution Control Division

Cc: Bob Jorgenson, APCD
Margie Perkins, APCD
Paul Carr, APCD
Gabi Hoefler, Boulder County Health Department
Richard Cargill



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Dr. William Marine
President, Board of Health
Boulder County Health Department
3450 Broadway
Boulder, Colorado 80304

June 17, 2002

Dear Dr. Marine,

I am writing to inform you of a questionable situation that is taking place in Boulder County that could have a serious impact on the environment and the public health.

On Sunday, June 2, 2002, John Lohr, plant manager at Cemex-Lyons, announced to the press that his facility intends to test-burn tires as fuel for its kilns. This announcement appeared as a news story in the Longmont Times-Call. (A copy of the article is enclosed.) Four day later, at a meeting of the North Boulder County Environmental Task Force, Mr. Lohr again announced Cemex's intent to start test burning tires at the plant. Although Mr. Lohr apologized for the manner in which this fact leaked out, I remain extremely disappointed that all parties had been kept in the dark about the company's plans.

We are alarmed at the possible consequences of this action. Least of all, this activity and the way in which it is being handled is not in keeping with the spirit of the Memorandum of Understanding that you and Mr. Lohr and I signed on August 13, 2001 agreeing "to pursue a collaborative working relationship to improve the health, environment, and quality of life of the St. Vrain Valley." Most alarming, the well-being of this environment and its residents may be threatened once again. I requested that Mr. Lohr prepare and distribute educational materials on tire burning so that citizens in the County can be informed prior to the onset of any burning.

The Watchdogs have been gathering information regarding "tire burning in cement kilns." What we have discovered so far leads us to believe that Cemex's project may pose a threat to public health and the environment. John Lohr and I discussed tire burning more than a year ago. It was Mr. Lohr's viewpoint-then-that the plant would not burn tires. At that time, however, the company was called Southdown. Now the company is Cementos de Mexico, (Cemex) and as of June 12, 2002, Cementos de Mexico has permits or authorizations to burn hazardous waste as fuel in 11 of the 18 plants in Mexico. Cementos de Mexico operates in a country with notoriously low environmental

standards, and now that company wants to bring those burning practices here to Boulder County.

The Watchdogs respectfully requests the Boulder County Board of Health to:

1. **Be adamant about safeguarding our health, environment, and quality of life.**
2. **Provide educational resources and appropriate assessments of the hazards of tire burning prior to the commencement of any tire burning.**
3. **Provide staff to assist in addressing concerns expressed in future community discussion groups.**
4. **Fully assess the health risks, hazards, and environmental impacts of tire burning prior to the onset of any burning.**
5. **Assess the differences in emissions between the current practices of fuel burning and the proposed change to include the burning of tires.**
6. **What have been the problems in other communities in which tires have been burned as cement kiln fuel?**
7. **Does tire burning open the door to the burning of any other solid or liquid waste? (The USGS includes tires in the category of waste along with undefined other solids and liquids.)**

The Watchdogs feel that the manipulative manner in which Cemex's "tire-burning" project is being forged may greatly stress this community, and may compromise the spirit of cooperation that was so difficult to attain. People are already asking hard questions like, how many more truck-trips will Cemex-Lyons need in order to transport 700,000+ tires a year. (Please note that the Boulder County Commissioners recently restricted the number of truck trip permitted to Lafarge's gravel operations in this community in order to maintain safety standards on our roadways.) Where are the tires going to be stock piled? What happens when tires are burned? What gets released at the stack? Are heavy metals, styrene, dioxins or other toxins present? What will happen to property values? Mr. Lohr spoke at the meeting of the Task Force about reducing the stockpile of used tires around the country as a service. But, I haven't met anyone yet who would be willing to put his or her health at risk so that Cemex-Lyons can reduce this stockpile. There are many other effective and wise ways to recycle and reduce the stockpile of used tires.

We strongly feel that it would be in the best interest of the Health Department, the County, and the public for Cemex-Lyons to postpone indefinitely any test burn until appropriate public education has been completed, and until we have had an opportunity to discuss compliances, violations, and safeguards with the Air Quality Control Commission and other appropriate regulatory agencies.

We respectfully request immediate assistance of the Boulder County Health Department in directing Cemex-Lyons to delay the test burn.

The Watchdogs have persevered relentlessly for four years in our campaign to contain fugitive dust emissions from the cement plant; to secure a proper disposal plan for cement

kiln dust so that it would not be released into the atmosphere and water shed; to persuade the company to install a truck wash so that cement spills on the tops of transports would be removed before the trucks entered traffic on Highway 66; to insure that traffic on Highway 66 is maintained at a reasonable level; to seek solutions to poor housekeeping practices at the cement plant; and to ferret out reasons for the cracks in the regulatory process. Enormous progress has been made. Complaints about air quality have been quieted; and residents are grateful to the Watchdogs, the Task Force, the Boulder County Health Department, the Colorado Department of Public Health and Environment, the press, the County Commissioners, Senator Campbell, Representative Saliman, John Lohr, the employees at Cemex-Lyons, and many others.

This tapestry of success may be about to take a giant step backwards in the interest of Cemex-Lyons saving money on fuel bills at the expense of our lungs and our health and the good will we so laboriously built. Is Cemex-Lyons courting the State and public by claiming that the company wants to help Colorado reduce the stockpile of tires? Does Cemex-Lyons truly believe that we will sit in silence while the company burns waste that may be hazardous? We have witnessed, through the Task Force, that a model of cooperative effort between citizens, government, and industry is possible. Cementos de Mexico; however, is far removed from Boulder County geographically; far removed from the magnificent St. Vrain Valley with its legacy of geological and ecological treasures. Cementos de Mexico appears arrogant and uncaring by venturing into its tire burning project without providing even a single paragraph of information to the public.

We all remember the terrifying story of the family in the St. Vrain Valley who had to keep the windows of their house closed for ten years because fugitive cement kiln dust was entering through the windows. We remember, too, how thankful this family was when the fugitive dust was appropriately contained and appropriately regulated, thanks to the Watchdogs and the Task Force. Let's not go gently into this situation allowing Cementos de Mexico to manipulate this family and the rest of us in Boulder County into harm's way again.

I sincerely hope that this questionable situation of tire burning at Cemex-Lyons may be resolved in a speedy and cooperative manner, and I hope that the Health Department and the Task Force and Cemex-Lyons may abide by the spirit of the Memorandum of Understanding:

"To work for the benefit of the general public"

Sincerely,



Richard Cargill

Executive Director

St Vrain Valley Community Watchdogs

Cc: Chuck Stout, Executive Director, Boulder County Health Department
Jeff Zayach, Director, Office of Environmental Health, Boulder County
Jane Norton, Executive Director, Colorado Department of Public Health and
Environment
North Boulder County Environmental Task Force
St. Vrain Valley Community Watchdogs' Steering Committee
Watchdogs' web-site: www.stvrainwatchdogs.org
Press

1 enclosure



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October 8, 2002

Ms. Erica Crosby
Environmental Protection Specialist
Division of Minerals and Geology
Department of Natural Resources
1313 Sherman Street, Room 215
Denver, Colorado 80203

Dear Ms. Crosby,

Thank you for your inspection report of September 5, 2002. Please keep the Watchdogs informed regarding the DMG's progress in the bonding for the cement kiln demolition and disposal.

Less than a month after the DMG inspection, Ms. Gabi Hoefler and Ms. Pamela Milmoie, Boulder County Health Department, conducted an unannounced "Complaint Investigation for Fugitive Dust" on September 30, 2002 at Cemex-Lyons. A copy of this investigation is enclosed.

The last several months have been a back slide. Plumes are still present from the CKD disposal pit and from the factory complex. The investigation by Ms. Hoefler and Ms. Milmoie confirms our suspicions that housekeeping problems are still issues. The improper handling of materials in the clinker pit; and the lack of compliance for cleaning up piles of dust noted in previous inspections may well have been the source of the recent plumes blowing off the company's property into the community.

This week, three plumes were reported to the Boulder County Health Department and to Cemex-Lyons on October 6, 2002. The compliance manager at the facility seeks refuge behind the 30 mph regulation. The community; however, has no refuge from Portland cement dust blowing in the wind.

One of the problems with this industry coming into compliance with an effective fugitive dust control plan could be that most inspections are "announced," which gives the plant time to clean up their housekeeping problems before the inspectors come.

The St. Vrain Watchdogs have been stewards of this area for several years out of necessity not choice. No one from the county or the State is within visibility of this plant to directly see these dust events, so we continue to have to alert government officials such as you. We would rather be living our lives in the peace and beauty of this gem of a valley. We hope that the practice of giving this company advance notice that an

"Protect what's closest to your heart; your family, friends and your lungs."

inspection will be occurring will shift. That practice allows time to "clean up their act" temporarily in order to stay in compliance and may delude regulators as to what is really the case. Until Ms. Hoefler and Ms. Milmoie made their unannounced inspection, they had no direct knowledge as to what we have been subject to here.

Many citizens have put in thousands of unpaid hours on this industry alone, and we still don't have containment of what we consider a hazardous and dangerous material spewing out of Cemex-Lyons. E. M. Forester once offered his countrymen words we might heed:

If you desire to save the countryside there is only one way,
through good laws rightly applied... That is your only hope. A
little has already been done: much more can be done in the future.
It needs men and women of good will who can continue and work
together lest destruction spread and cover the fields and the hills.

Thanks for your prompt responses and your continuing attention to this matter.

Sincerely,

Richard Cargill
Executive Director
St. Vrain Valley Community Watchdogs

Enclosure: Complaint Investigation for Fugitive Dust, BCHD

Cc: Mr. Bruce Humphries, Minerals Program Supervisor
Mr. Carl Mount, Senior Environmental Protection Specialist, DMG
Ms. Beth Versaw, President, Boulder County Board of Health
Mr. Chuck Stout, Executive Director, BCHD
Ms. Pamela Milmoie, Air Quality/Pollution Prevention Coordinator, BCHD
Ms. Gabi Hoefler, Environmental Health Specialist, BCHD
Boulder County Commissioners, Jana Mendez, Paul Danish, Ron Stewart
Mr. G. Billingsley, Director, Boulder County Land Use Department
Mr. Richard Long, Director, Air and Radiation Program, USEPA, Region 8
Ms. Jane Norton, Executive Director, CDPHE
Ms. Margie Perkins, Division Director, Air Pollution Control Division, CDPHE
Mr. Quimette, Manager, Stationary Sources Program, CDPHE
Mr. Jorgenson, APCD, CDPHE
Ms. Shannon McMillan, CDPHE, Air Pollution Control Division
Representative Todd Saliman, District 11
Representative Mark Udall
Mr. Doug Lempke, Administrator, Colorado Air Quality Control Commission
Mr. Kirk Cunningham, Sierra Club, Boulder County
American Lung Association
Mr. Gilberto Perez, Cemex, President of U.S. Operations
EPA - Washington, D.C., Docket RCRA - 1999-0011

COMMENTARY & OPINION

CEMEX tire burning plan requires a leap of faith

As we move closer to the intended time frame set by CEMEX to test burn tires as a supplemental fuel in the cement kiln at their Lyons plant, the debate over the wisdom of the proposal is starting to get as hot as a kiln fire (about 1500 degrees Fahrenheit, slightly hotter than the asphalt on the 100 degree day we had on the last day of July).

Both sides, it seems, are growing weary of the debate and tones of personal attack are starting to creep around the fringes of the controversy. The next public meeting on the matter — Tuesday, August 20, at Rogers Hall on High Street here in Lyons — ought to be a barn burner.

The last public meeting on CEMEX's plan was actually two competing meetings held simultaneously at the CEMEX plant out on Ute Highway (by the North Boulder County Environmental Health Community Task Force) and at the Methodist church in Hygiene (by the St. Vrain Valley Watchdogs). Even with the crowd split in two, things are reported to have gotten testy at points.

To the credit of the company, they have been quite up front about their intention to test burn tires, and anyone who had given it much thought should have seen this proposal coming. Tire-burning in cement kilns is a growing trend.

CEMEX is pretty good at putting a smiley environmental face on its operations, putting out books filled with wildlife photographs and gleaming the sort awards that often go to huge corporations that do a little bit of cleaning up around the margins. But the fact remains that making cement is a dusty and, it seems, environmentally shaky proposition. "We make dust, that's what we do," plant manager John Lohr has been quoted as saying.

Cement kiln dust (CKD) is thought to be a carcinogen. The

From the Editor



Mike Oatley

CEMEX plant on Ute Highway, has had a difficult time bringing CKD blowing off its site under control. It took the external pressures of the Community Task Force to get any movement on the issue.

But some people who live near the plant don't think the problem has been adequately addressed yet. They complain that the sprinkler system design to keep CKD wetted down and on the ground breaks down and then is out of service for some time while new parts are ordered. Why, they ask, doesn't CEMEX keep spare parts on hand? It's not as if they don't know the sprinkler system will break down now and then. As Ken Dobbs, of the Environmental Justice Project and owner of a business that, in part, installs sprinkling systems, says all sprinkler systems are prone to breaking down.

The groups vocally opposing CEMEX's plan cite the CKD situation as one reason they don't trust the company to burn tires at the plant.

Certainly the potential for hazardous emissions from tire-burning are possible. Open air tire fires are a serious health hazard. In a typical year, three or four such fires break out across the the country. The opposing groups say that even if CEMEX could run the kiln properly with tires mixed into the fuel at a 10% to 20% ratio, "upsets" that periodically occur during combustion would send the products of incomplete combustion into the atmosphere, where such compounds can bind to particulates in the air and travel more than 40 miles before settling to earth.

It should not be necessary to impugn CEMEX's trustworthiness in order to say mixing tires into the coal used as fuel in the plant is a bad idea. Used tires are a problem. They accumulate at the rate of one per person per year, for every man, woman and child in the United States.

The thing is, tires do become hazardous waste when they are burned and hazardous waste should be disposed of in hazardous waste incinerators, which are much more tightly regulated — and far more sophisticated — than cement kilns. For example, hazardous waste incinerators are outfitted with secondary combustion chambers, afterburners that further combust the products of initial combustion.

The other thing is, demand for used tires as a raw material in other, non-combustive uses is growing. Tires are stripped of their steel belts and pelletized for use on artificial athletic turfs. Tires are turned into rubber mats. Tires are being used as an additive to asphalt that has produced good results in California.

Tom Abbott, chairman of the Community Task Force, is right when he says that we have an obligation to make the most of the natural resources we extract from the earth.

But we'd also do well to be careful in how we wring additional uses from those resources and, in the case of used tires, true recycling that turns tires into other products fits that bill far better than simply them.

If CEMEX was really concerned with putting substance behind the facade of environmental concern all corporations are effectively required to project, they'd be exploring ways to fire their kilns with natural gas.

The idea that we should err on the side of caution where human health is concerned, put forth by Boulder County resident and CEMEX neighbor Lou Dobbs, seems to be the best guiding principle at work in this controversy. CEMEX's bottom line is not nearly so significant of a concern.

Letter Policy

The Old Recorder Newspaper welcomes letters from our readers. All letters must include the author's name and phone number for our verification. We reserve the right to abridge or edit all letters for space. Letters should be submitted by noon on Tuesday for that Thursday's publication. Letters may be sent via e-mail to: editor@oldrecorder.com

Controversy over tires still burning hot

Oct. 26, 1992

By Susan de Castro McCann

Redstone Review Editor

LYONS - The controversy over burning tires at Cemex, the cement plant just east of Lyons, is still a hot issue for residents living in Lyons and near the plant. A meeting and test burn is scheduled for sometime in November.

Currently the Cemex plant burns coal, not a particularly green fuel, but commonly used at cement plants. The Lyons Cemex plant would like to start burning tires, which may be more cost effective for the plant than coal.

But would burning tires create more hazardous materials in the air to breathe or not? This is the question that has turned into a controversy between the cement plant

and the residents who also feel that Cemex has been careless about dust particle emissions at the plant and has not been a good neighbor.

The cement plant, understandably, says tires are safe to burn. The residents and environmental groups, understandably, say no. And the health department says maybe yes, maybe no, only a test can tell for sure.

"We burn coal now and if you look at our stacks you won't see any smoke or flames coming out," said John Lohr, the plant manager at Cemex. "We burn fuel in the kilns and it burns so hot (1,500 degrees to 2,700 degrees) that there are hardly any emissions and no smoke."

Lohr said that based on his research with other companies,

including their sister cement company in Georgia, the emissions from burning tires would be the same as the emissions from burning their current fuel. "Compared to coal burning - the emissions will be exactly the same," said Lohr. "It will be virtually unchanged. Most of the compounds in coal are in tires. They are not that different chemically."

Cemex has a permit from the state of Colorado to burn tires and the company did burn tires from 1989 to 1992 but stopped because the system was not cost efficient.

Three environmental groups are opposing the test burn and future burning of tires for fuel. Those groups are the Environmental Justice project, The St. Vrain Valley Community Watchdogs

and the Sierra Club, which filed a lawsuit on Oct. 1 in Boulder County District Court saying that the permit issued to Cemex to burn tires, by Boulder County in 1989, is no longer valid.

"I'm concerned about the reliability and credibility of Cemex," said Richard Cargill, chairman of the St. Vrain Valley Community Watch Dogs. "They have a sprinkler system to control the dust, but when it broke down some time ago it took them weeks to fix it. It has taken us four years to get them to try to get their act together. They have poor house keeping practices. If they can get their act together with the cement dust, then I would say we could look at test results for burning tires. But if they can't get their act together on dust, I don't want to look at test results."

Pam Milmoie, air quality, hazardous waste and pollution pre-

vention coordinator for Boulder County said that she is gathering information from the public and listening to public input. "The EPA has said that with the exception of zinc, emissions should not increase by burning tires in a well run, well maintained plant," she said. "But the studies vary. Some studies show a decrease in dioxins and some studies show that there is an increase in the emissions. There are 28 states that allow tire burning at 36 plants. It really depends on how well run and well maintained the plant is."

On Sept. 30 the Boulder County Health Dept. conducted an unannounced inspection in response to complaints and found five sources of fugitive dust at the Cemex plant. The health department requested a response from Cemex indicating how it would clean up the dust.